

From: [HamidH - Miami Global Lines](#)
To: [Secretary](#)
Cc: [KirtiC - Miami Global Lines](#); egreenberg@gkglaw.com; [Megan Montgomery](#)
Subject: MGL Comments on Proposed Maritime Demurrage & Detention Rule
Date: Wednesday, October 30, 2019 6:33:06 PM
Attachments: [image033.png](#)
[image034.png](#)
[image035.png](#)
[image036.png](#)
[image037.png](#)
[image040.png](#)
[AAA.1.pdf](#)
[AAA.2.pdf](#)
[2.1.pdf](#)
[2.2.pdf](#)

To Secretary FMC:

Greetings from MGL ([EMC Lic.#023172NF](#)):

I take this privilege to place some of the issues to you which we as NVO are experiencing in perspective to subject rule which is under consideration.

1. Excessive Detention Charges for CBP inspection containers By Carrier/Liners:

Very often US Outbound containers are being pulled out by CBP under random inspection. These incidences not only cost delays but also attract following extra financial burden to exporter which is discouraging and making US product uncompetitive in international market.

AAA) Custom inspection : This includes Drayage (Out/In) + Devanning etc. Please see an example in **attached AAA.1** – US\$ 1766.00

BBB) Besides custom hold cost, carriers are charged US\$ 2225.00 for same container again Detention charges. Please see in **attached AAA.2**

Total cost for a custom hold container paid (1766 + 2225) = 3,991.00

2. Exorbitant Charges for Roll Over Container by Carrier & Port Terminals:

Due to variety of reasons (Eg. SLI Transmitted electronically but carrier not received. CBP Inspection etc) when containers get rolled over we are being charged exorbitantly. Here are two such examples for your attention :

2.1

\$ 42.46 ROLL FEE,

\$ 3814.30 Terminal Transfer Add.

\$ 100.00 ADMIN FEE

\$ 250.00

\$ 4207.76 TOTAL!!!

Attached 2.1

2.2

\$163.04—Port Origin extra

\$839.40—Terminal Move

\$100.00 – admin fee

\$250.00 – roll fee

\$ 1352.44 TOTAL

Attached: 2.2

Our request:

- There should be no DEM / DET charges and it should be stopped for all containers getting pulled for CBP inspection as there is already excess cost to be borne for drayage & Devanning.
- For all vessel delays there should be NO PER DIEM and dry run must be borne by carrier if they failed to inform customer in advance.
- All roll over containers due to lack of docs should be stacked for quick next vessel load and Port should NOT charge for STORAGE & RE-HANDLING fee which is exorbitant

Warm Regards,
Hamid Hussaini

President & CEO



Air & Ocean NVO/Forwarder, Warehousing & Distribution

140 Ethel Road West; Unit 'S&T'; Piscataway, NJ 08854 - USA

Ph.: 1-732-640-2365 x 211; Dir: 7327771008; eFax: 1-732-334-0489

FMC Lic. #023172NF / IAC#: NE1210010 – Certified **CTPAT**
Customs Trusted Partner Agency

D&B #: 0788 762 58

Follow Us On Social Media:



@miami_global_



<https://www.facebook.com/Miami-Global-Lines-598731596988527/>



ACCREDITED
BUSINESS

BBB Rating: A+

as of 9/18/2019

[Click for Profile](#)

Awards:



Professional Attitude at all Altitudes!

 Cont/Seals/Marks Packages/Description of Goods Weight Measure

THESE COMMODITIES MAY BE CONTROLLED BY THE U.S. GOVERNMENT AND AUTHORIZED FOR EXPORT ONLY TO THE COUNTRY OF ULTIMATE DESTINATION FOR USE BY THE ULTIMATE CONSIGNEE OR END-USER(S) HEREIN IDENTIFIED. THEY MAY NOT BE RESOLD, TRANSFERRED, OR OTHERWISE DISPOSED OF TO ANY OTHER COUNTRY OR TO ANY PERSON OTHER THAN THE AUTHORIZED ULTIMATE CONSIGNEE OR END-USER(S), EITHER IN ORIGINAL FORM OR AFTER BEING INCORPORATED INTO OTHER ITEMS, WITHOUT FIRST OBTAINING APPROVAL FROM THE U.S. GOVERNMENT OR AS OTHERWISE AUTHORIZED BY U.S. LAW AND REGULATIONS.

SERVICE CONTRACT NUMBER: CC2444351

CHARGE	RATE	BASIS	W/M/V	CURR	PREPAID	COLLECT
PORT CHARGE ORIGIN	42.46	CTR	1	USD	42.46	
MARINEFUEL RECOVER	582.00	CTR	1	USD	582.00	
TERMINAL TRNSF.ADD	3814.30	CTR	1	USD	3814.30	
SEC.MANIF.DOCUMENT	35.00	BIL	1	USD	35.00	
DOCUMENT FEE	50.00	BIL	1	USD	50.00	
ADMIN FEE ORIGIN	100.00	CTR	1	USD	100.00	
SHIPP.EXP.DEC.HDLG	250.00	CTR	1	USD	250.00	
TMNL SECURITY DEST	9.00	CTR	1	USD		9.00
THC DESTINATION	148.00	CTR	1	USD		148.00
LUMPSUM				USD	1791.00	

 Cont/Seals/Marks Packages/Description of Goods Weight Measure

PORT CHARGE ORIGIN PREPAID
 SEAFREIGHT + ADDITIONALS PREPAID
 PORT CHARGE DESTINATION COLLECT
 DESTINATION HAULAGE CHARGES COLLECT

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SERVICE CONTRACT NUMBER: CC2444351

CHARGE	RATE	BASIS	W/M/V	CURR	PREPAID	COLLECT
ORIGIN LANDFREIGHT	709.00	CTR	1	USD	709.00	
DG SURCHARGE OLF	175.00	CTR	1	USD	175.00	
FUEL ORGIN INLAND	32.00	CTR	1	USD	32.00	
TERMINAL MOVE ORIG	839.40	CTR	1	USD	839.40	
PORT CHARGE ORIGIN	163.04	CTR	1	USD	163.04	
MARINEFUEL RECOVER	582.00	CTR	1	USD	582.00	
DANG. PREMIUM SEA	250.00	CTR	1	USD	250.00	
DESTIN LANDFREIGHT	930.00	CTR	1	USD	930.00	
SEC.MANIF.DOCUMENT	35.00	BIL	1	USD	35.00	
DOCUMENT FEE	50.00	BIL	1	USD	50.00	
ADMIN FEE ORIGIN	100.00	CTR	1	USD	100.00	
TMNL SECURITY DEST	9.00	CTR	1	USD		9.00
THC DESTINATION	163.00	CTR	1	USD		163.00
LUMPSUM				USD	1791.00	

**HREW, LLC INVOICE FOR EXAM CHARGES**

420 Woodlake Drive
Chesapeake, VA 23320
Phone: (757) 523-5040
Fax: (757) 523-4272

Website: www.hrew-ces.com

Invoice

Date: 09/07/2017

Attention: SAM HAIDER

Tracking Number: T69023

Company: MIAMI GLOBAL LINES

Phone: (732) 640-2365 ext: 323 **Fax:**

Container: APHU7394920

Reference Number: MUM17010016

Bill of Lading: NAM2829772

Vessel: CSL VIRGINIA

HREW Agent: Rhiannon Ortiz

The Last Free Day For Container at HREW, LLC (CES) is 09/12/2017

Item	Code	Qty	Rate / Unit Price	Line Total
Preparation of Customs Form 6043/Delivery Ticket	01	1	\$21.00	\$21.00
Toll 2016	48	2	\$10.00	\$20.00
Chassis Rental	45	2	\$35.00	\$70.00
Drayage From Pier To CES	48	1	\$150.00	\$150.00
Drayage Charge - Return to Pier	49	1	\$150.00	\$150.00
Devan CBP 40' Floor	16	1	\$765.00	\$765.00
Please Make Company Check Payable to HREW, LLC in this amount:				\$1176.00

Payment Options

We will release your container upon receiving proof of payment (I.E. Copy of check and overnight slip, wire transfer, PayCargo, etc.).

Thank You

CMA CGM (America) LLC
5701 Lake Wright Drive
Norfolk, VA, 23502



Established in Norfolk
Invoice Date : 13-SEP-17
Invoice Number : 147430
Type : Detention & Accessorial invoice
Cross Ref :

ORIGINAL

Invoice

Attention of :
Customer Code : 0000414249001 / 143
Customer Name : MIAMI GLOBAL LINES
Customer Address : Attn: Accounts Payable
140 ETHEL ROAD WEST
UNIT S & T
PISCATAWAY NJ 08854

Reference : BL# NAM2829772- - - - 13-SEP-2017

Item /description	Vessel Voyage	Date	POL - POD POO - FPD	Unit Price Qty	Amount (USD)
(C)* DETENTION 8/28/2017 - 9/1/2017	CLVIR	31-AUG-17		115.00	575.00
	Y146MRE			5.00	
(C)* DETENTION 9/2/2017 - 9/11/2017	CLVIR	31-AUG-17		165.00	1,650.00
	Y146MRE			10.00	

Issued By :

TAX Amount : 0.00 Gross amount :
Total Net Amount Due in USD 2,225.00

Remarks :B/L # NAM2829772 BKG # NAM2829772 CNTR # APHU7394920 DETENTION; APHU7394920 had to be picked up for an export Customs exam. Detention accrued between the date of 8/28 and the date of 9/11.

Terms : IMMEDIATE
Due By : 13-SEP-17

Please Remit Checks To CMA CGM (America) LLC
5701 Lake Wright Drive
Norfolk VA VA 23502

Please Remit Wires To: CMA CGM & ANL Securities
Wells Fargo Bank
440 Monticello Avenue
Suite 1100
Norfolk, VA 23510
Account Number: 4985253863
ABA: 121000248
SWIFT: WFBUS6S

Payment shall be made for full amount on or prior due date, free of charges, without any deduction nor discount for advance payment. All bank charges are for the account of the payer-remitter.

We now accept Visa or MasterCard payments not to exceed \$500.00.

Please call (757)961-2400 for details.

C* = item billed on the name and on behalf of CMA CGM S.A.
FR72562024422 - 4, quai d'Arenc - 13235 Marseille Cedex 02 - France

Page 1 / 1